

The Criminal Justice Process in Ontario

1. A Crime is Investigated

- If the police believe, on reasonable grounds, that a person has committed a crime, then they may charge that person with that crime.

2. The Suspect is Compelled to Attend Court

- The suspect may learn of the charge in different ways:
 - (1) The suspect may be **arrested**.
 - The suspect is apprehended and notified of the charges; and
 - The suspect is then held in police custody OR is released by police and given a document directing them to attend court on a particular date.
 - *(A suspect may also be arrested and then released without charge, in which case they are free to go and the process is over.)*
 - (2) The suspect may be served a document directing them to attend court at a particular date and location, without ever being taken into police custody.
 - (3) The police may lay a charge and seek an **arrest warrant** from the Court.
 - The arrest warrant gives the police the authority to locate the suspect in order to arrest the suspect and give them notice to attend court.

3. The Charge is Laid

- Before the first court appearance, a police officer must prepare an **Information**: a document confirming that the officer has reasonable grounds to believe the suspect has committed the particular offence(s).
- The officer must swear the Information before a **Justice of the Peace** (a court official who is not actually a judge, but who serves some judicial functions) or before a judge.
- The Information is filed with the court, which then has jurisdiction over the charge.

4. The Charge is Processed

- The Crown Attorney reviews the Information (this is often called “**charge screening**”).
- The Crown Attorney can withdraw the charge(s), proceed with the charge(s), or request that the charge(s) be changed.
- The Crown Attorney must consider two factors in making this decision:
 - Is there a reasonable likelihood of conviction? *and*
 - Is it in the public interest to prosecute?
- The accused may be charged **indictably** or **summarily**:
- There are three types of crimes in the *Criminal Code*:
 - (1) **Indictable offences**:
 - More serious; carry heavier penalties.

- Maximum penalties range from two years to life imprisonment, in addition to which courts may impose a fine.
 - If a particular penalty is not stipulated in the *Criminal Code*, then the default maximum penalty is 5 years' imprisonment (s. 743).
 - No **statute of limitations** (i.e. no limit to how much time can elapse between the commission of the crime and the charge being brought).
 - (*Exception: there is a 3-year statute of limitations for treason.*)
 - The accused usually, though not always, has the right to a jury trial (and they can usually, though not always, waive that right).
 - There may be a preliminary inquiry (*see below*).
- (2) **Summary conviction offences**
 - Less serious; carry lighter penalties.
 - Usually, the penalty is less than two years.
 - If a particular penalty is not stipulated in the *Criminal Code*, then the default maximum penalty is imprisonment for not more than two years less a day, a \$5000 fine, or both (s. 787).
 - Twelve-month statute of limitations.
 - No preliminary inquiry (*see below*).
 - (3) **Hybrid offences**
 - These offences appear in the *Criminal Code* as follows: "Everyone who [commits the prohibited act] is guilty of (a) an indictable offence [...] or (b) an offence punishable by summary conviction..."
 - The Crown Attorney elects whether to charge the offence as an indictable offence or as a summary conviction offence.
 - The election can take place as late as the start of the trial, although it is customary to do it sooner.
 - The charges are deemed indictable until the election is made.

5. The Bail Hearing Takes Place (*if the suspect is in custody*)

- If the suspect has been held in custody following their arrest, they are supposed to have a bail hearing within 24 hours to decide whether they can be released pending trial, or whether they must remain in "**pretrial detention**" (i.e. held "**on remand**").

6. The Accused is Arraigned

- (*The suspect has been formally charged with a crime and is now the "accused".*)
- The accused appears before a judge having jurisdiction over the charge and over the person (i.e. the accused) and is **arraigned** (i.e. the charge(s) is/are read to the accused).
- The accused may then **enter a plea of guilty or not guilty** to the charges.

7. A Resolution Discussion or Pre-Trial Meeting May Take Place

- The accused's defence attorney may meet with the Crown Attorney to discuss the possibility of resolving some issues before the trial begins.

- (The accused may also be **self-represented**, in which case they may receive ad hoc assistance from **duty counsel**, who are lawyers paid by **Legal Aid Ontario** and provide some assistance but do not take on cases for the long-term.)
 - The Crown Attorney and the accused may agree on some facts, which can then be put into evidence easily.
 - The Crown Attorney and the accused may discuss a **plea bargain** (i.e. a **resolution agreement**), whereby the accused will enter a guilty plea in exchange for one or more concessions from the Crown.
 - *(A plea bargain can also be struck after the trial starts, but the parties are usually more incentivized to bargain beforehand.)*
- In Ontario, a judge may oversee a pre-trial discussion, and is required to do so for complex and serious charges.

8. A Preliminary Inquiry May Take Place

- If the accused is charged with an offence punishable by imprisonment for a term of 14 years or more, then she may have a **preliminary inquiry**: a formal hearing before a judge to determine if there is enough evidence to commit the accused to stand trial.
- The Crown Attorney or the accused may request a preliminary inquiry.
 - *(In 2019 – in part as a response to increased concerns about avoiding trial delay – Bill C-75 restricted the availability of preliminary inquiries, which were previously available upon request for all indictable offences.)*

9. The Trial Takes Place

- The parties take turns making opening statements, examining and cross-examining witnesses, and making closing statements
- The trial may take place before a **judge alone** (either at the Ontario Court of Justice, or at the Superior Court), or before a **jury** and a judge of the Superior Court.
- The majority of cases are heard by a judge alone in the Ontario Court of Justice.

10. The Verdict is Issued

- The accused is found guilty or not guilty by the **“trier of fact”** (i.e. the jury, or the judge sitting alone; in all cases the judge serves as a the **“trier of law”** and resolves purely legal issues that arise).

11. The Sentencing Takes Place *(if the accused is convicted)*

- *(Having been convicted, the accused is now formally an offender.)*
- The judge who convicted the offender determines the sentence in light of the purpose and principles of sentencing (s. 718 ff) and the sentencing range for the offence.

12. An Appeal May Take Place

- The accused may appeal a conviction and/or a sentence.
- The Crown may appeal an acquittal and/or a sentence.
- A party must appeal on one or more “grounds” (that is, the party must articulate one or more specific complaints about the trial process/decision that the appeal court is invited to

resolve). The allowable grounds differ, depending on whether the appeal is being brought by the Crown or the accused, and depending on whether prosecution was by indictment or summary conviction. The governing rules are in ss. 674-677 of the *Criminal Code* (and, for appeals to the Supreme Court of Canada, in the *Supreme Court Act*, R.S.C. 1985, c. S-26)

- An appeal on a summary conviction offence from the Ontario Court of Justice is heard by the Superior Court.
- An appeal on an indictable offence from the Ontario Court of Justice, or an appeal from the Superior Court, is heard by the Court of Appeal for Ontario.
- An appeal from the Court of Appeal for Ontario is heard by the Supreme Court of Canada.
 - Criminal appeals to the Supreme Court of Canada may be by leave or as of right.

13. The Offender Serves Their Sentence

- If the offender is sentenced to two years or more of incarceration, they will serve their time in a **federal penitentiary** managed by **Correctional Services Canada**.
- If the offender is sentenced to less than two years of incarceration, they will serve their time in a **provincial correctional facility** managed by **Ontario's Correctional Services** (*hence the significance of setting sentences at "two years less a day"*).
- The offender may serve a "non-custodial sentence" such as probation.

14. The Offender May Seek Parole

- **Parole** refers to a period of conditional release that is ordered by a Parole Board, during which an offender can leave prison early while remaining under State supervision.
 - (By contrast, **probation** refers to a period of conditional release within the community that is ordered by a sentencing judge instead of, or in addition to, prison time.)
- The **Parole Board of Canada** has exclusive authority to grant, deny, or revoke parole for offenders serving sentences of two years or more, while the **Ontario Parole Board** makes parole decisions for offenders serving sentences of less than two years Ontario.
- Inmates are eligible to apply for full parole upon serving one-third of their sentences or seven years, whichever is less.
 - (*There is an exception for offenders serving life sentences for murder: those serving life sentences for first-degree murder may apply after 25 years (or, in rarer cases involving two or more victims, after a longer period set by the sentencing judge at the time of sentencing); and those serving life sentences for second-degree murder may apply after a period of between 10 years and 25 years, as determined by the sentencing judge at the time of sentencing.*)

14. The Offender May Seek a Record Suspension or Clemency

- The offender may seek to have their record suspended (in which case, the Parole Board of Canada may make an order whereby their criminal record will no longer appear in the Canadian Police Information Centre databases)
- The offender may apply for clemency, whereby the Governor General may exercise a discretionary power to pardon them or grant respite from the execution of sentence.
- For interested students, the details of these powers are outlined here: <https://www.canada.ca/en/services/policing/parole.html>. (This is *far* beyond the scope of our Criminal Law course, however, so please only pursue this topic if it is of intrinsic interest.)